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Case Number: 24SMCV04697 Hearing Date: June 26, 2026 Dept: M

CASE NAME: Creative

Artists Agency, LLC, v. Range Media Partners, LLC

CASE NO.: 24SMCV04697

MOTION: Motion

for Judgment on the Pleadings

HEARING DATE: 6/26/2026

Legal

Standard

A defendant's motion for judgment

on the pleadings may be made after the time to demur has expired and an answer has been filed. (CCP § 438(f).) A motion by a defendant may be made on the grounds that (1) the court "lacks jurisdiction of the subject of one or more of the causes of action alleged" or (2) the complaint or cross-complaint "does not state facts sufficient to constitute a cause of action against that defendant." (CCP § 438(c).)

A motion for judgment on the

pleadings has the same function as a general demurrer but is made after the time for demurrer has expired. Except as provided by statute, the rules governing demurrers apply. (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999.) "A motion for judgment on the pleadings is akin to a general demurrer; it tests the sufficiency of the complaint to state a cause of action. The court must assume the truth of all factual allegations in the

complaint, along with matters subject to judicial notice.” (Wise v. Pacific Gas and Elec. Co. (2005) 132 Cal.App.4th 725, 738, citations omitted.) Further, like a general demurrer, a motion for judgment on the pleadings “does not lie as to a portion of a cause of action, and if any part of a cause of action is properly pleaded, the [motion] will be overruled.” (Fire Ins. Exchange v. Superior Court (2004) 116 Cal.App.4th 446, 452.)

ANALYSIS

Defendant/Cross-Complainant Range

Media Partners, LLC (“Range”) moves for judgment on the pleadings on Plaintiff Creative Artists Agency LLC’s (“CAA”) cause of action under Business and Professions Code section 17200, predicated on Range’s alleged violation of the Talent Agencies Act (“TAA”). (SAC ¶ 168(3).)

Plaintiff’s request for judicial notice is GRANTED.

As the court observed at the prior demurrer on this subject, the alleged violations of the UCL may be broken down into distinct categories. The Court commented that the sub-claims would not be subject to a demurrer (or, in this instance, a motion for judgment on the pleadings), as the motions attack only a portion of the UCL cause of action, rather than the entire cause of action. Thus, the instant motion would be better suited as a motion to strike, which may attack specific allegations of a pleading. Despite this procedural issue, the Court will turn to the merits of Defendant’s arguments and newly cited case law.

In sum, Defendant argues that the TAA subclaim is barred because the TAA provides the exclusive means for resolving any dispute under the TAA and Plaintiff has not exhausted administrative remedies with the Labor Commissioner. Defendant further reasons that Plaintiff “cannot use the Unfair Competition Law to ‘plead around’ an ‘absolute bar to relief.’” (In re Vaccine Cases (2005) 134 Cal.App.4th 438, 458 (quoting Cal-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co. (1999) 20 Cal.4th 163, 182).) In support of this argument, Defendant cites a new case, Loeffler v. Target Corp. (2014) 58 Cal.4th 1081. That case held, in part, that an action may not lie under the UCL when another statutory scheme provides the exclusive means for resolving disputes. (Id., at 1126.) Ignoring that this case could have been brought to the Court’s

attention at the initial hearing, Loeffler does not support dismissing the UCL subclaim arising from TAA violations.

The exclusive jurisdiction and administrative remedies discussed in Loeffler are materially different from the scheme of the TAA and the jurisdiction of the Labor Commissioner. In Loeffler, consumers alleged that Target had collected a sales tax reimbursement on takeout sales of coffee allegedly not subject to a sales tax. (Loeffler, *supra*, 56 Cal.4th at 1093-1094.) The UCL claim specifically sought injunctive relief against Target from charging sales tax to consumers for to-go coffee, and restitution of the wrongfully acquired tax reimbursement. (Id.) The Supreme Court reviewed the history and development of California law on the sales tax issues. “[U]nder California’s sales tax law, the taxpayer is the retailer, not the consumer. In addition, the taxability question, whether a particular sale is subject to or is exempt from sales tax, is exceedingly closely regulated, complex, and highly technical. A comprehensive administrative scheme is provided to resolve these and other tax questions and to govern disputes between the taxpayer and the Board. Under these administrative procedures, it is for the Board in the first instance to interpret and administer an intensely detailed and fact-specific sales tax system governing an enormous universe of transactions. Administrative procedures must be exhausted before the taxpayer may resort to court. ... [T]his comprehensive statutory scheme is inconsistent with consumer claims such as plaintiffs’ by which a party other than the taxpayer would seek to litigate whether a sale is taxable or exempt.” (Id., at 1103.) The Court held that an action may not lie under the UCL because another statutory scheme provides the exclusive means for resolving disputes, analogizing the tax scheme to the exclusive remedy provisions of the workers’ compensation law, which would encompass even collateral or derivative claims. (Id. at 1126-1127.) For those reasons, the Court rejected UCL claims because resolution of the claims would require the court to determine the taxability of the transactions prior to any determination by the tax authorities. Loeffler also discussed whether the claims violated Cal. Const. art. XII, § 32, which forbids any legal proceedings which “prevent or enjoin the collection of any tax” and only permits actions to recover taxes after payment in a manner provided by the Legislature. While the Court avoided directly addressing this constitutional issue, this article still informed the Court’s interpretation of the relevant statutes. (Id. at 1102-1103.)

The TAA materially differs from the comprehensive tax scheme discussed above. Generally, it regulates the

activities of a “talent agency,” i.e., “a person or corporation who engages in the occupation of procuring, offering, promising, or attempting to procure employment or engagements for an artist or artists . . .” (Civ. Code § 1700.4(a).) “Artists” include stage and screen actors; radio and musical artists; musical organizations; theater, movie, and radio directors; writers; cinematographers; composers; lyricists; arrangers; models; “and other artists and persons rendering professional services in motion picture, theatrical, radio, television and other entertainment enterprises.” (Civ. Code § 1700.4(b).) The Act’s remedial purpose is to protect artists seeking professional employment from the abuse of talent agencies. (*Waisbren v. Peppercorn Productions, Inc.* (1995) 41 Cal.App.4th 246, 254.) The Labor Commissioner has jurisdiction over controversies arising under the TAA, and all such matters shall be referred to the Labor Commissioner. (Lab. Code, § 1700.44(a); *Styne v. Stevens* (2001) 26 Cal.4th 42, 54.) The Labor Commissioner must hear all such disputes, and all remedies before the Labor Commissioner must be exhausted before the parties can proceed to the superior court. (*REO Broadcasting Consultants v. Martin* (1999) 69 Cal.App.4th 489, 494-495.) Even when a defendant raises a defense based on a violation of the TAA, the court cannot consider the merits of that issue until the Labor Commissioner has first examined it. (*Styne*, supra, 26 Cal.4th at 58-59.) Under such circumstances, the court would stay the proceedings and permit the filing of a petition to determine the controversy with the Labor Commissioner. (*Id.* at 58.)

The TAA is not analogous to the tax scheme discussed in *Loeffler*, since the TAA does not provide any means for resolving a dispute between competitors before the Labor Commissioner. As discussed in the previous demurrer, the caselaw on exhaustion only involves contract disputes between artists and agents. (*Blanks v. Seyfarth Shaw LLP* (2009) 171 Cal.App.4th 336, 365.) The term “parties” is not expressly defined by the TAA, but TAA uses “party” or “parties” in reference to parties under an Artist-Agent contract. (Civ. Code §§ 1700.37, 1700.44; see also 8 CCR § 12022.) In fact, unpublished petition decisions by the Labor Commissioner reflect the TAA provides the Labor Commissioner original jurisdiction over “controversies between ‘artists’ and ‘agents.’” (*Dokoza v. Lenhoff Enterprises, Inc.*, No. TAC41756, 2016 WL 10981702 (Cal. Lab. Comm’r Dec. 4, 2016) [dismissing petition by *Dokoza* because she was not an “artist” as defined by the TAA, and as a result her petition is not subject to the original jurisdiction of the Labor Commissioner]; accord *Patchett v. DLM LA, Inc.*, No. TAG 47367, 2018 WL 11662398 (Cal. Lab. Comm’r Oct. 18, 2018); *Turtle Rock Studios, Inc. v.*

Digital Dev. Mgmt., Inc., No. TAC-41987, 2017 WL 8161184 (Cal. Lab. Comm'r Mar. 20, 2017); *Monacella v. Int'l Creative Mgmt., Inc.*, No. TAC 7-95, 1995 WL 18241646 (Cal. Lab. Comm'r Sept. 27, 1995).) Plaintiff and Defendant do not have an artist-agent relationship. Furthermore, unlike the instant claims between competitors, Loeffler noted an exclusive administrative scheme for consumers to demand repayment before the tax authorities. (Loeffler, *supra*, 58 Cal.4th at 1122–1123 [a so-called Javor claim].) The TAA reveals no analogous administrative procedure for competitors to bring an action before the Labor Commissioner.

The administrative exhaustion principles of the TAA would also be subject to exceptions. Courts recognize several exceptions to the exhaustion of administrative remedies defense, including: “(1) when the administrative agency cannot provide an adequate remedy, and (2) when the subject of controversy lies outside the agency’s jurisdiction.” (*Campbell v. Regents of University of California* (2005) 35 Cal.4th 311, 322.) “[T]he rule requiring exhaustion of administrative remedies does not apply where an administrative remedy is unavailable.” (*Tiernan v. Trustees of Cal. State University & Colleges* (1982) 33 Cal.3d 211, 217.) “The doctrine of exhaustion of administrative remedies does not require a litigant to present his or her claim to an administrative body powerless to grant relief.” (*Id.* at 218.) “There must be clearly defined machinery for the submission, evaluation and resolution of complaints by aggrieved parties.” (*Life Care Centers of America v. CalOptima* (2005) 133 Cal.App.4th 1169, 1177, internal quotes and alterations omitted.) As discussed, there is no apparent procedure for competitors to bring an action before the Labor Commissioner. As such, the administrative remedies of the TAA are unavailable to Plaintiff. This further distinguishes Loeffler, which likely could not consider any exceptions due to the constitutional forbearance of such judicial proceedings, as well as the availability of remedies for consumers within the tax scheme.

Accordingly, the motion is DENIED.